

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
NOEL MOORE,

Index No.

Date Index No. Purchased:

Plaintiff,

-against-

Plaintiff designates BRONX
County as the place of trial.

THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICERS
AUSTIN HIERONYMI,
RICHARD PODLOVITS,
and JOHN DOE,

The basis of venue is the
locus of the events in the
Complaint

SUMMONS

Defendants.
-----X

To the above-named Defendant(s):

Please take notice that you are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
September 11, 2020



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Attorney for Noel Moore

Defendants' address:
City of New York
c/o Corporation Counsel

100 Church Street
New York, NY 10007

Police Officer Austin Hieronymi, Shield # 24365
c/o NYPD 47th Precinct
4111 Laconia Avenue
Bronx, NY 10466

Police Officer Richard Podlovits, Shield # 19283
c/o NYPD 52nd Precinct
3016 Webster Avenue
Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
NOEL MOORE,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.

THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICERS
AUSTIN HIERONYMI,
RICHARD PODLOVITS,
and JOHN DOE,

Defendants.
-----X

Plaintiff Noel Moore, by his attorney, Cyrus Joubin, complaining of the Defendants,
respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This action arises from the unlawful stop, questioning, and frisk of, and First Amendment retaliation against, Noel Moore (“Plaintiff” or “Mr. Moore”) by New York City Police Department (“NYPD”) officers in December 2019. Plaintiff brings state and federal claims against the defendant NYPD officers who violated his Constitutional rights, and against the City of New York under the doctrine of *respondeat superior*. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney’s fees pursuant to applicable state and federal civil rights law.

VENUE AND JURISDICTION

2. Venue is proper in Bronx County Supreme Court pursuant to CPLR Section

503 because the acts complained of occurred in Bronx County, New York, and Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the State of New York.

3. Plaintiff has complied with N.Y. General Municipal Law Section 50-E by serving a notice of claim (on January 22, 2020) upon the defendants. More than 30 days have elapsed since said claim (2020PI003253) was presented and the claim has not been satisfied. This action has been commenced within one year and ninety days after the occurrence of the event upon which the claims are based.

JURY DEMAND

4. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

5. At all times relevant herein, Plaintiff was a resident of the State of New York.

6. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York.

7. Defendant City of New York is authorized by law to maintain the NYPD, is ultimately responsible for the NYPD, and assumes the risks incidental to the maintenance of it and its employees.

8. At all times relevant herein, Defendant Police Officers Austin Hieronymi (Shield # 24365) ("PO Hieronymi"), Richard Podlovits (Shield # 19283) ("PO Podlovits"), and John Doe ("PO Doe") were acting as duly appointed and acting NYPD officers, servants, employees, and agents of Defendant City; for, on behalf of, and with the power and authority vested in them by Defendant City; and they were otherwise

performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

STATEMENT OF FACTS

9. On December 15, 2019, at around 12:20 a.m., Plaintiff Noel Moore walked with his brother, Joel Moore, south along Morris Avenue in the Bronx.

10. They had just left their sister's home at 675 Morris Avenue, and headed toward a store around 151st Street and Morris Avenue.

11. Soon after they left their sister's building, as they approached the northwest corner of 153rd Street and Morris Avenue (outside Fine Fare Supermarket), Mr. Moore saw an unmarked police car.

12. Three male plain-clothes police officers – the defendant officers: PO Hieronymi, PO Podlovits, and PO Doe – emerged from the unmarked car and approached Mr. Moore and his brother.

13. Mr. Moore and his brother had simply been talking and walking; they were doing nothing unlawful or suspicious.

14. The officers ordered Mr. Moore and his brother to stop.

15. Mr. Moore and his brother complied with this command.

16. The officers baselessly asked Mr. Moore and his brother if they had any weapons.

17. Mr. Moore and his brother replied that they had no weapons.

18. Mr. Moore was pressed against the glass of the Fine Fare Supermarket so that the officers could search him.

19. The defendant officers frisked Mr. Moore and searched his pockets.

20. Mr. Moore was in possession of nothing unlawful or suspicious.
21. Mr. Moore's brother was also frisked and searched, with nothing unlawful or suspicious found on him either.
22. Mr. Moore clearly stated that he did not consent to any search and that the officers were violating his rights.
23. When the officers walked away, Mr. Moore tried to take a photograph of the license plate of the defendant officers' unmarked car, but he did not do so because the officers threatened to arrest him if he took a photograph.
24. After the officers got back into their vehicle, they followed Mr. Moore and his brother as they continued walking.
25. Some of the officers stuck up their middle fingers at Mr. Moore and his brother.
26. The officers drove away in their vehicle, leaving Mr. Moore distressed, humiliated, and degraded.
27. The defendant officers were wearing body cameras.
28. Within a week of the incident, Mr. Moore sent a Freedom of Information Law ("FOIL") request to the NYPD – through its online portal – asking for the defendant officers' body camera footage related to his unconstitutional stop and frisk.
29. In response to his FOIL request, the NYPD sent Mr. Moore a copy of the Stop Report relating to his encounter with the defendant officers: Stop Report #STP-2019-040-000282 – which referenced Body-Worn Camera Serial Number X81461717.

30. In his Notice of Claim, Mr. Moore demanded that all footage from the individual defendants' body cameras, relating to his December 15, 2019 stop and frisk, be preserved.

31. As a direct and proximate cause of the said acts of the Defendants, Plaintiff suffered the following injuries and damages in a sum exceeding the jurisdiction of all lower courts:

- a. Violation of his constitutional rights under the First and Fourth Amendments to the United States Constitution;
- b. Violation of his constitutional rights under the New York State Constitution;
- c. Loss of liberty;
- d. Emotional distress, degradation, and suffering.

CAUSES OF ACTION

FIRST CLAIM

Unlawful Search Pursuant to 42 U.S.C. Section 1983 Against the Individual Defendants

32. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

33. By the actions described, the individual defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from unlawful searches.

34. Without probable cause, a warrant, or consent, the individual defendants frisked Plaintiff's body and searched Plaintiff's pockets, where Plaintiff had an expectation of privacy.

35. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

SECOND CLAIM
Unlawful Seizure Pursuant to 42 U.S.C. Section 1983
Against the Individual Defendants

36. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

37. By the actions described, the individual defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be secure in his person against unreasonable seizures.

38. As detailed above, the individual defendants intentionally stopped and detained Plaintiff without reasonable suspicion, and without privilege and consent.

39. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

THIRD CLAIM
Failure to Intervene Pursuant to 42 U.S.C. Section 1983
Against the Individual Defendants

40. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

41. Each and every individual defendant had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights by other law enforcement officers.

42. The individual defendants failed to intervene on Plaintiff's behalf to prevent, end, or truthfully report the violations of his constitutional rights despite knowing about such violations and having had a realistic opportunity to do so.

43. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

FOURTH CLAIM
First Amendment Retaliation Under 42 U.S.C. Section 1983
Against the Individual Defendants

44. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

45. By the actions described, the individual defendants threatened Plaintiff because he wished to lawfully exercise his First Amendment right take a photograph in a public place; specifically, they threatened to arrest Plaintiff because he wanted to take a photograph of their license plate. In doing so, the individual defendants chilled Plaintiff's First Amendment rights.

46. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

FIFTH CLAIM
Unlawful Search and Seizure Under New York State Constitution Art. I, Section 12
Against All Defendants

47. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

48. Article 1, Section 12, of the New York State Constitution declares the right to be free from unreasonable searches and seizures.

49. Without probable cause and without Plaintiff's consent, the individual defendants detained Plaintiff and searched his person.

50. As a direct and proximate result of the unlawful conduct detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

SIXTH CLAIM**Negligent Hiring/Training/Retention of Employment Services Under N.Y. State Law
Against Defendant City of New York**

51. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

52. Defendant City owed a duty of care to Plaintiff to prevent the unlawful search and seizure, First Amendment retaliation, and emotional abuse sustained by Plaintiff.

53. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions. Defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants could potentially cause harm.

54. Defendant City's negligence in hiring, screening, training, disciplining and retaining the individual defendants proximately caused Plaintiff's injuries.

55. As a result of its negligent conduct, Defendant City has directly and proximately caused the damages and injuries hereinbefore alleged.

SEVENTH CLAIM***Respondeat Superior*****Against Defendant City of New York**

56. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

57. Defendant City of New York employed all of the individual defendants at the time of the incident.

58. At the time of the incident, all of the individual defendants were acting in the scope of their employment with the City of New York.

59. During the commission of the incident in question, all of the individual defendant were working in furtherance of their employment with the City of New York.

60. Under the doctrine of *respondeat superior*, the City of New York is responsible for the wrongdoing of its employees acting within the scope of their employment.

61. The plaintiff is entitled to compensatory damages from the City of New York in an amount to be determined at trial, together with attorneys' fees and costs.

62. As a direct and proximate result of the acts of the New York City employees detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against the Defendants:

- a. An order awarding compensatory damages for Plaintiff Noel Moore in an amount to be determined at trial;
- b. An order awarding punitive damages in an amount to be determined at trial;
- c. A court order, pursuant to 42 U.S.C. Section 1988, that Plaintiff is entitled to reasonable attorney's fees, costs, and disbursements;
- d. Such other and further relief as this Court deems appropriate.

DATED: New York, New York
September 11, 2020



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Attorney for Noel Moore

PLAINTIFF VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

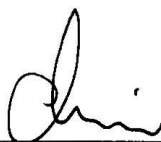
I, Noel Moore, being duly sworn, depose and say: I am the Plaintiff in the within action, I have read the foregoing Complaint and know the contents thereof; and the same is true to my knowledge.

Dated: New York, NY
September 11, 2020



NOEL MOORE

Sworn to before me this
11th Day of September 2020



Notary Public

CYRUS JOUBIN
NOTARY PUBLIC-STATE OF NEW YORK
No. 02JO6264189
Qualified in Kings County
My Commission Expires 6-25-2024